

HOUSE BILL 1153

By Lynn

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to school nutrition.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-2302, is amended by deleting the section and substituting instead the following:

(a) Each local board of education shall establish a school lunch program and a school breakfast program that provides a free lunch and breakfast to each student enrolled in a school under the board's jurisdiction who is eligible for free or reduced-price meals, according to rules established under § 49-6-2303.

(b) Subject to available funding, the state shall reimburse each LEA the cost of providing a free breakfast and lunch served to each student enrolled in the LEA who is eligible for reduced price meals after all federal funds available pursuant to the national school lunch program created by the National School Lunch Act (42 U.S.C. § 1751 et seq.), the school breakfast program created by the Child Nutrition Act of 1966 (42 U.S.C. § 1771 et seq.), or any other federal program have been applied.

SECTION 2. Tennessee Code Annotated, Section 49-6-2303, is amended by deleting the language ", regardless of its participation" in subdivision (5) and by deleting subdivision (10).

SECTION 3. Tennessee Code Annotated, Section 49-2-114(a), is amended by deleting "receive free or reduced-price school lunches" and substituting "are members of households with an income that meet the eligibility requirements for free or reduced-price lunch as determined pursuant to 42 U.S.C. § 1758".

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.